

ORIGINAL

(S E R V E D)
(MAY 21, 1990)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

May 21, 1990

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

PROCEDURAL ORDER

**RESPONDENTS' JOINT MOTION FOR LEAVE TO APPEAL
RULING OF PRESIDING ADMINISTRATIVE LAW JUDGE DENIED**

On March 23, 1990, the Respondents filed a Motion for Limitation on Conduct of Proceeding. The Complainants filed a Reply to the Motion on April 3, 1990. On April 19, 1990, the Respondents' Motion was denied by the Presiding Officer and on April 26, 1990, that denial was reaffirmed. On May 4, 1990, the Respondents filed Respondents' Joint Motion for Leave to Appeal Ruling of Presiding Administrative Law Judge, under authority of Rule 153 of the Commission's Rules of Practice and Procedure (46 CFR 502.153). A

later corrected submission was made on May 7, 1990. The Complainants filed their Reply on May 11, 1990.

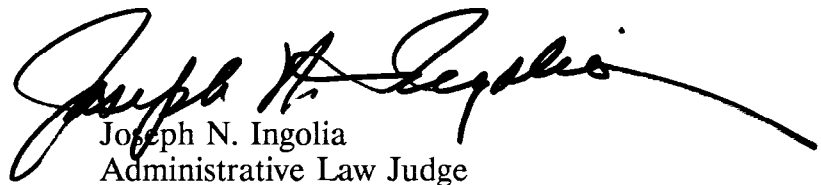
Rule 153 of the Commission's Rules of Practice and Procedure provides in pertinent part that:

§ 502.153 Appeal from ruling of presiding officer other than orders of dismissal in whole or in part.

(a) Rulings of the presiding officer may not be appealed prior to or during the course of the hearing, or subsequent thereto, if the proceeding is still before him or her, except where the presiding officer shall find it necessary to allow an appeal to the Commission to prevent substantial delay, expense, or detriment to the public interest, or undue prejudice to a party.

After a complete review of the present record in this proceeding and after consideration of the arguments of the parties, it is hereby,

Ordered, that the Respondents' Joint Motion for Leave to Appeal Ruling of Presiding Administrative Law Judge is denied. The allowance of the appeal would cause substantial delay rather than prevent it. Further, denial of the appeal will neither occasion unnecessary expense nor will it be a detriment to the public interest. Finally, allowing the appeal will not prevent "undue prejudice" to any party.


Joseph N. Ingolia
Administrative Law Judge